

फार्म नं. 1 173 BNS, 2023
प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.)

वि.पु.स्था.सी.-II
S.P.E.C.-II

बुक नं.

Book No. **1305**

क्रम सं.

Serial No. **10**

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date

Ghaziabad CBI, ACB, GZB 2024 RC1202024A0013 06.11.2024

2. (1) विधान : धाराएं :
Act **IPC** Sections **120-B r/w 420 and 406**

(2) विधान : धाराएं :
Act **PC Act, 1988** Sections **Sec 7 of PC Act**
(As amended in 2018)

(3) विधान : धाराएं :
Act Sections

(4) अन्य विधान एवं धाराएं : **Cheating, Criminal Breach of Trust, Criminal Conspiracy, obtained undue advantage by abusing his official position as Public Servant.**
Other Acts & Sections

3. (क) प्रतीत अपराध :
(a) Suspected Offence

(ख) दिन : दिनांक समय
(b) Day Date Time

During the time period 07.09.2018 to 03.02.2021

(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date **22.10.2024**

कायमी अपराध : **05**
Entry No.

दिनांक **06.11.2024** समय **12.15 PM**
Date Time

4. सूचना का प्रकार : लिखित/मौखिक
Type of Information Written/Oral **Written**

5. घटना का स्थान **SME Agra Branch (2376), Now Soorsadan Branch**
Place of Occurrence **Agra, Canara Bank.**

(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS - **230 Kms. (Approx.)**

(ख) पता:

(b) Address

**SME Agra Branch (2376), Now Soorsadan Branch Agra,
Canara Bank.**

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -

(c) In case, outside the limit of this Police Station, then **N.A**

पुलिस थाना का नाम

Name of PS

CBI, ACB, Ghaziabad

जिला

District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम

(a) Name

Shri Hari P.V., DGM, Canara Bank, Agra, UP

(ख) पिता / पति का नाम

(b) Father's / Husband's Name

(ग) जन्म तिथि

(c) Date of Birth

(घ) राष्ट्रियता :

(d) Nationality **Indian**

(ङ) पासपोर्ट नं.

(e) Passport No

जारी दिनांक

Date of Issue

जारी होने का स्थान

Place of Issue

(च) व्यवसाय

(f) Profession

DGM, Canara Bank, Agra.

(छ) पता -

(g) Address

**Circle office Agra, Rajendra Centre, Sector 12A/CC-1,
Awasthi Vikas Colony, Sikandara, Agra**

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण :

Details of known / suspected / unknown accused with full particulars

(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)

(Attached separate sheet, if necessary)

(1)

(2) **1. Separate Sheet Attached as per Annexure "A"**

(3)

Annexure "A"

Col No. 7 Details of known/suspected/unknown accused with full particulars.

1. M/s Ratan Prakashan Mandir, Regd. office at Ratan Mall, 3rd Floor, 1/185C, Professor's Colony, Delhi Gate, Agra-282002.
2. M/s Vikas Books Ltd. Regd. Office at No. 306, II Floor, EMCA Chambers, 51, Dariya Ganj, New Delhi- 110002.
3. Mr. Ravi Jain S/o Late Sh. Prem Chand Jain, Director of M/s Vikas Books Ltd. and Mortgagor & Guarantor for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd., R/o 1/184, Professor's Colony, Delhi Gate, Agra-282002.
4. Mr. Atul Jain S/o Late Sh. Prem Chand Jain, Director of M/s Vikas Books Ltd. and Mortgagor & Guarantor for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd., R/o 1/184, Professor's Colony, Delhi Gate, Agra-282002.
5. Mrs. Hemlata Jain W/o Sh. Prem Chand Jain, Director of M/s Vikas Books Ltd. & Guarantor for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd., R/o 1/184, Professor's Colony, Delhi Gate, Agra-282002.
6. M/s Ratan Infratech, situated at 5/169/1, Lata Kunj, Agra-Mathura Road, Agra-282002.
7. Unknown public servants and unknown Private Persons.



VIJYENDRA KUMAR, IRS
DIG/HEAD OF BRANCH
CBI, ACB, GHAZIABAD

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant
9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen
11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U.D. case No. if any
12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First Information contents (Attach separate sheet, if required)

A written complaint dated 27.08.2024 of Sh. Hari P.V., DGM, Agra Canara Bank, Circle office Agra addressed to the Head of Zone, Bank complaint cell CBI 5th Floor, CBI Head Quarters, 5-B, CGO Complex, Lodhi Road, New Delhi-110003, which was received in this office on 22.10.2024, is enclosed (17 sheets) with FIR.

On perusal of the enclosed complaint, it is, prime facie, disclosed that wrongful loss amounting to Rs. 23.76 Crores to the complainant Bank has been caused by way of cheating and criminal breach of trust by M/s Ratan Prakashan Mandir, Borrower Firm, M/s Vikas Book Ltd. Borrower Company, Sh. Ravi Jain, Director of M/s Vikas Books Ltd. and Mortgagor & Guarantor for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd., Sh. Atul Jain, Director of M/s Vikas Books Ltd. and Mortgagor & Guarantor for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd., Mrs. Hemlata Jain, Director of M/s Vikas Books Ltd. & Guarantor for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd. and M/s Ratan Infratech, in criminal conspiracy with Unknown Public Servants of SME Agra Branch, Canara Bank, now Soorsadan Agra Branch & Unknown Private Persons from period of 2018 to 2021.

The facts mentioned in the referred complaint, prime facie, discloses commission of cognizable offences punishable under section 120-B r/w 420 and 406 of IPC and Sec 7 of PC Act 1988 (as amended in 2018) against 1- M/s Ratan Prakashan Mandir, 2- M/s Vikas Books Ltd. 3- Sh. Ravi Jain S/o Late Sh. Prem Chand Jain, 4- Sh. Atul Jain S/o Late Sh. Prem Chand Jain, 5- Mrs. Hemlata Jain W/o Mr. Prem Chand Jain, 6- M/s Ratan Infratech, 7- unknown public servants and other unknown private persons.

Hence, a regular case is registered and entrusted to Shri Mukesh Kumar Pandey, Inspector, CBI, ACB, Ghaziabad for investigation and report.


VIJYENDRA KUMAR, IRS
DIG/HEAD OF BRANCH
CBI, ACB, GHAZIABAD

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2

A Regular case is registered and investigation is taken up

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or

(2) निर्देशित (जांच अधिकारी का नाम)	रैंक	नं.	जांच हेतु लिया गया
Directed (Name of IO)	Rank	No.	Took up for investigation
Shri Mukesh Kumar Pandey, Inspector, CBI, ACB, Ghaziabad			Yes

- (3) कारण से जांच के नामंजूर
Refused investigation due to
- अथवा
or

- (4) पुलिस थाना को स्थानांतरित किया गया
Transferred to PS
- जिला
District
- क्षेत्राधिकार के आधार पर
on point of jurisdiction

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature/Thumb impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर

Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank

(Vijendra Kumar)
DIG/ Head of Branch
CBI/ACB/Ghaziabad

VIJENDRA KUMAR, IRS
DIG/HEAD OF BRANCH
CBI, ACB, GHAZIABAD

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

VIJENDRA KUMAR, IRS
DIG/HEAD OF BRANCH
CBI, ACB, GHAZIABAD

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/Year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	*वर्ण (Complexion)	*पहचान चिह्न (Identification Mark/s)
1	2	3	4	5	6	7

- Not available-

विरूपता/विलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress Habit/s)
8	9	10	11	12	13

- Not available-

भाषा / बोली (Language/Dialect)	स्थान / Place of				
	जले का निशान (Burn Mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जख्म चिह्न (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

- Not available-

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

Endt. No. DPACBGZB/2024/3092-3095/RC1202024A0013

Dated 06.11.2024

Copy to:

1. The Special Judge, CBI Court No. – 3, Ghaziabad.
2. The Head of Zone, CBI, Lucknow Zone, Lucknow.
3. The CVO, Canara Bank, 86, Spencer Building, M G Road, Bangalore -560002
Karnataka.
4. Shri Mukesh Kumar Pandey, Inspector, CBI, ACB, Ghaziabad.
5. Guard File.



6/11/2024

(Vijendra Kumar)
DIG/Head of Branch
CBI/ACB/Ghaziabad

VIJENDRA KUMAR, IRS
DIG/HEAD OF BRANCH
CBI, ACB, GHAZIABAD

RA1202024A0038

SECRET



CENTRAL BUREAU OF INVESTIGATION

Bank Complaint Cell
5th Floor, CBI Head Quarters,
5-B, CGO Complex, Lodhi Road,
New Delhi - 110003

Sub:- Forwarding of Bank fraud complaint received from Canara Bank against M/s Ratan Prakashan Mandir & M/s Vikas Books Ltd., Regd. Office: at No. 306, 11st Floor, EMCA Chambers, 51, Dariya Ganj, New Delhi involving amount of Rs 23.76 Crores - reg.

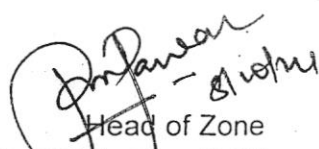
Please refer to Policy Division OM No. 21 / 24 / 2015 / 3169 dated 18.09.2019.

2. Pursuant to the aforesaid OM dated 18.09.2019, HoZ, BSFZ, New Delhi has assigned the subject complaint to **HoB, CBI, ACB, Ghaziabad**.

4108
3. Accordingly, please find enclosed herewith bank complaint dated 27.08.2024 in original received from Shri Hari P V, DGM, Canara Bank, Agra, UP vide letter No. AGCO / R & L / Complaint / Ratan Prakashan/ 2024-25 dated 27.08.2024 against M/s **Ratan Prakashan Mandir & M/s Vikas Books Ltd., Regd. Office: at No. 306, 11st Floor, EMCA Chambers, 51, Dariya Ganj, New Delhi** for taking further necessary action at your end.

22/10
4. It may please be noted that allegations against '**Unknown Public Servant**' are mentioned in the instant complaint.

5. BCC, CBI, New Delhi has not conducted any enquiry in this matter.


Head of Zone
CBI, BSFZ, New Delhi

Encl: (As above)

HoB / CBI / ACB / Ghaziabad

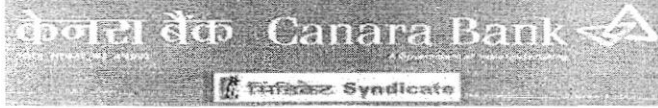
CBI ID No. 4532 / BCC / 2024 / E / 0363

Dated 08 / 10 / 2024

Copy to:-

- i. The JD (P), CBI, CGO Complex, New Delhi for kind information please.
- ii. The HoZ, CBI, Lucknow Zone, Lucknow for kind information please.
- iii. The CVO, Canara Bank for information please.
- iv. Branch Head, Canara Bank, Agra for information please

Dy.No. 1570
SP/Bank Complaint Cell
Date 18.09.2024



75
आजादी का
अमृत महोत्सव

To,

Sh. Pravin Pawar, IPS,
JD/NDFZ/DELHI,
Central Bureau of Investigation,
Bank Complaint Cell,
5th Floor, CBI Head Quarters,
5-B, CGO Complex, Lodhi Road,
New Delhi-110003

Dy. No. 776(D)/HOZ/BSFZ
Date 17/09/2024

SP BCC
P 17/9
PRAVIN PAWAR
HOZ/BSFZ/DELHI

Date: 27.08.2024

Subject: Filing of CBI Compliant with Economic Offences Wing against M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd. and its Proprietors and Guarantors

This has reference to the subject above.

We wish to inform you that we received a letter with reference number CBI ID No. 3205/BCC/2024/E/0274 dated 12 August 2024. The letter mentioned a deficiency in our previously submitted complaint, specifically noting "uncertainty about the criminality on the part of Bank officials" and that "the Bank has not mentioned allegations against 'Unknown public servants'". In light of this feedback, we have made the necessary corrections to our original complaint.

Consequently, we are hereby re-submitting copies of the revised complaint in duplicate along with original Authorization letter issued by General Manager, Agra Circle office, Canara Bank.

This is to inform you that we had earlier submitted photo copies sale deeds executed by Borrowers in favor of third parties diluting the mortgaged properties and the same has been retained by your office.

We kindly request you to acknowledge the same.

Yours Sincerely,

Hari P.V.
Deputy General Manager



Recoveries & Legal Section
Circle Office, Agra

Ph No -0562-3500621
legalcoagra@canarabank.com

(1)

Ref no. AGCO: R&L:CC:01:2024

Date: 03.07.2024

To,
Sh. Hari P.V. (70315)
Deputy General Manager
Canara Bank
Circle office Agra

Subject: Letter of Authority for filing CBI complaint against M/s Ratan Prakashan Mandir
& Ors.- Reg

LETTER OF AUTHORITY

I, Joginder Singh Ghangas, General Manager (Circle Head), Canara Bank, Circle Office Agra do hereby authorise Sri Hari PV (70315), Deputy General Manager, Canara Bank, Agra Circle Office as per Clause 17.5 of Fraud Risk Management Policy 2024-25 against M/s Ratan Prakashan Mandir (Proprietorship of Late Sh. Prem Chand Jain & its guarantors- Sri Ravi Jain, Sh. Atul Jain and Smt Hemlata Jain), M/s Ratan Infratech through its Partners- Sri Ravi Jain & Sh. Atul Jain M/s Vikas Books Ltd through its directors Sri Ravi Jain, Sh. Atul Jain and Smt Hemlata Jain, as authorised representative to file CBI complaint in the captioned matter on behalf of the Bank.

JOGINDER SINGH GHANGAS
GENERAL MANAGER (CIRCLE HEAD)



REF: AGCO/R&L/COMPLAINT/RATAN PRAKASHAN/2024-25

DATE: 27.08.2024

To,

Head of Zone,
BS & F Zone
CBI Headquarter
CGO Complex,
Lodhi Road, New Delhi

Respected Madam/Sir,

Subject: Request for registering FIR against M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd. and its proprietors and guarantors, for defrauding our SME Agra Branch (2376), to the extent of Rs. 23.76 Crores.

Canara Bank is a Nationalized Bank and Banking Company constituted under the Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 having its' Head Office at No. 112, J. C. Road, Bangalore-560002 and concerned branch at SME Branch, LIC Building, Sanjay Place, Agra.

I, Shri Hari P.V. S/o Shri Narayan aged about 53 years, presently working as Deputy General Manager, Canara Bank, Circle Office, Agra duly authorized by the Competent Authority to lodge the complaint with CBI for and on behalf of Canara Bank against Borrower Company M/s Ratan Prakashan Mandir and its Guarantors Mrs. Hemlata Jain, Mr. Ravi Jain, Mr. Atul Jain and M/s Ratan Infratech, through its partners Sri Ravi Jain & Sri Atul Jain and Borrower company M/s Vikas Books Ltd. through its Directors Mr. Ravi Jain, Mr. Atul Jain and Mrs. Hemlata Jain.

I narrate our complaint to seek your immediate attention, filing of First Information Report (FIR) and for initiating necessary action towards forgery, presenting of false documents, criminal breach of trust, cheating etc, submit as under :-

Brief facts of the case:

1	Name of the Bank	Canara Bank
2	Name of the Branch	SME Branch, at LIC Building, Sanjay Place, Agra (DP Code- 2375)
3	Date of lodging of complaint	03.07.2024
4	Time, Date & Place of occurrence of fraud	Fraud occurred during the period from 07.09.2018 to 03.02.2021, during which the borrower sold the mortgaged flats and embezzled hypothecated stock, machinery, furniture and fixtures at Agra.

5	Name of the Complainant	Canara Bank represented by Deputy General Manager, Agra Circle Office.												
6	Brief details of fraud	<u>Brief background of the Company-</u> M/s Ratan Prakashan Mandir is a proprietorship firm established in the year 1960. Late Sri Prem Chand Jain is the proprietor of the firm. The firm is engaged in publication of educational books and literacy material since inception. It is a publishing house for Help Books and Guide Books of all subjects. It has network of dealers and wholesalers in Central & Northern India. The firm was dealing with Federal bank and approached SME Branch of our Bank for takeover of limits. Vide Orders dated 14.06.2005 the firm was permitted WC limit of Rs. 4.80 crore (OCC Rs. 4.00 crore, CDB Rs. 0.30 crore & BG Rs. 0.50 crore) for takeover of limits. On the request of the Borrower, the existing WC limit was renewed with enhancement from Rs. 4 Crores to Rs. 5.50 crore on 03.07.2006. Other existing BG limit and CDB limits were continued. Vide Orders dated 08.02.2007, the firm was permitted with a Term Loan of Rs. 11.00 crore and the TL was disbursed on 21.02.2007. The existing WC limit of Rs. 5.50 crore and TL of Rs. 11.00 crore were renewed on 28.04.2008 as per Orders dated 17.04.2008. The TL of Rs. 11.00 crore was closed on 03.06.2009 by availing Canara Mortgage loan of Rs. 11.00 crore. The Canara Mortgage loan also stands closed on 12.02.2013. Further the WC limit was renewed with enhancement from time to time and the details of renewal/enhancement are as under: <table><tr><th>Date of Sanction/ Renewal</th><th>Renewal/Enhancement</th></tr><tr><td>06.07.2009</td><td>Renewal with enhancement from Rs.5.50 Cr to Rs. 6.00 Cr with WCDL facility of Rs. 1.11 Cr. – Total Rs. 7.11 Cr.</td></tr><tr><td>15.11.2010</td><td>Renewal of existing limit of Rs. 7.11 Cr (OCC Rs. 6.00 Cr + WCDL Rs. 1.11 Cr)</td></tr><tr><td>07.01.2012</td><td>Renewal with enhancement from Rs. 6.00 Cr to Rs. 8.00 Cr (WCDL closed)</td></tr><tr><td>18.05.2013</td><td>Renewal with enhancement from Rs. 8.00 Cr to Rs. 10.00 Cr</td></tr><tr><td>05.09.2014</td><td>Renewal with enhancement from Rs. 10.00 Cr</td></tr></table>	Date of Sanction/ Renewal	Renewal/Enhancement	06.07.2009	Renewal with enhancement from Rs.5.50 Cr to Rs. 6.00 Cr with WCDL facility of Rs. 1.11 Cr. – Total Rs. 7.11 Cr.	15.11.2010	Renewal of existing limit of Rs. 7.11 Cr (OCC Rs. 6.00 Cr + WCDL Rs. 1.11 Cr)	07.01.2012	Renewal with enhancement from Rs. 6.00 Cr to Rs. 8.00 Cr (WCDL closed)	18.05.2013	Renewal with enhancement from Rs. 8.00 Cr to Rs. 10.00 Cr	05.09.2014	Renewal with enhancement from Rs. 10.00 Cr
Date of Sanction/ Renewal	Renewal/Enhancement													
06.07.2009	Renewal with enhancement from Rs.5.50 Cr to Rs. 6.00 Cr with WCDL facility of Rs. 1.11 Cr. – Total Rs. 7.11 Cr.													
15.11.2010	Renewal of existing limit of Rs. 7.11 Cr (OCC Rs. 6.00 Cr + WCDL Rs. 1.11 Cr)													
07.01.2012	Renewal with enhancement from Rs. 6.00 Cr to Rs. 8.00 Cr (WCDL closed)													
18.05.2013	Renewal with enhancement from Rs. 8.00 Cr to Rs. 10.00 Cr													
05.09.2014	Renewal with enhancement from Rs. 10.00 Cr													

	to Rs. 12.00 Cr (OCC), ILC/BG Rs. 1.00 Cr – Total Rs. 13.00 Cr
29.07.2015	Renewal with enhancement from Rs. 12.00 Cr to Rs. 14.00 Cr (OCC), ILC/BG Rs. 1.00 Cr – Total Rs. 15.00 Cr.
23.01.2017	Renewal with enhancement from Rs. 14.00 Cr to Rs. 17.00 Cr (OCC), ILC/BG Rs. 1.00 Cr – Total Rs. 18.00 Cr.
26.06.2018	Short renewal of existing limit of Rs. 18.00 Cr for 6 months
21.03.2020	Short renewal for 6 months with reduction in OCC limit from Rs. 17.00 Cr to Rs. 15.62 Cr and ILC/BG Rs. 1.00 Cr - Total Rs. 16.62 Cr.
19.08.2020	GECL Rs. 3.10 crore

Due to the lockdown imposed during the Covid-19 pandemic, the business of the firm got affected as all the educational institutes were not functioning. As such, the firm faced cash flow mismatches and could not regularize the over-dues. The account slipped to NPA on 31.03.2021 with retrospective effect as on 29.12.2020.

Recovery Action-

Suit has been filed in DRT, Allahabad via O.A no 746 of 2022. SARFAESI action was also initiated against the subject party and symbolic possession was taken 20.07.2022. District Magistrate's order under Section 14 of SARFAESI Act for obtaining physical possession was obtained on 28.11.2023.

Details of Sanction: M/s Ratan Prakashan Mandir

i. Details of Limits: (Rs. in Crores)

Nature of Limit	Date Of Sanction	Limit	Book Liability as on Date of NPA	Contractual Liability as on Date of lodging complaint
OCC	21.03.2020	15.62	14.91	28.26
GECL	19.08.2020	3.10	3.10	4.41
CFITL	01.09.2020	1.09	1.10	1.83

NFB-LC	21.03.2020	1.00	0	0
Total		20.82	19.11	34.50

ii. Details of Security:

1. Prime:

Description	Value
a) Hypothecation of all kind of stock, Raw material, Semi finished goods, finished goods, consumable & spares etc.	Rs.8.53 Cr as per Stock Audit report dated 27.07.2021.
b) Hypothecation of Book Debts (all present & future).	Rs.12.56 Cr as per Stock Audit report dated 27.07.2021. Present value : NIL

2. Collateral:

a) EMT of land and building (9 storey structure for residential housing complex named as "Helios") situated at khasra No 483-484 Minjumla, Nagar Nigam No 1/184 and 1/185, Professors Colony, Delhi Gate, Mauza Surjapur Mual Tehsil, Distt Agra in the name of Late Mr Prem Chand Jain, Mr. Ravi Jain, Mr. Atul Jain.	Rs.26.42 Cr (As per Valuation report dated 26.12.2023 given by M/s ARDECO (Common security for M/s Ratan Prakashan Mandir& M/s VikasBooks Ltd).
b) Hypothecation of existing plant & machineries and other fixed assets.	Rs.0.02 Crore as per WDV ABS 2019.

3. Personal Guarantee:

(Rs. in Crores)

Name	Designation	Net worth	Basis
Sri. Ravi Jain	Guarantor	12.48 Cr.	as per last available NF 589 dated 02.12.2019
Sri. Atul Jain	Guarantor	9.65 Cr	as per last available NF 589 dated 02.12.2019
Late Sri. Prem Chand Jain	Proprietor	Died on 12.08.2023	
Smt. Hemlatha Jain	Guarantor	9.70 Cr	as per last available NF 589 dated 02.12.2019

4. Corporate Guarantee: NIL

Details of Sanction: M/s Vikas Books Ltd.

M/s Vikas Books Ltd. (CIN- U74899DL1995PLC064412), is a Private Limited Company having its Regd. Office at No. 306, II Floor, EMCA Chambers, 51, Dariya Ganj, New Delhi- 110002. Sri Atul Jain, Sri Ravi Jain and Smt. Hem Lata Jain are the Directors of the Company and Late Sri Premchand Jain is the Guarantor.

The Directors were in the business of publication and trading of educational/ text books and were dealing with our Bank since 27.02.2015. The Company was sanctioned with credit facilities of OCC limit of Rs. 3.70 Crores as per sanction letter dated 24.09.2020. The details of limits sanctioned and the securities offered are as under;

i) Details of Limits Sanctioned:-

(Rs. in Crores)

(Amt in lakhs)	Sanctioned Limit	Book Liability	Outstanding as on date
OCC	3.52	3.53	6.61
GECL	0.87	0.87	1.25
CFITL	0.26	0.26	0.43
Total	4.65	4.66	8.29

ii) Details of Securities:-

a) Primary Security- Hypothecation of Stocks and Book Debts and Hypothecation of Plant & Machinery

b) Collateral Security- Collateral Security of M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd. are common. Hence security details are same as mentioned above.

iii) Personal Guarantee:-

Name	Designation	Net worth	Basis
Sri. Ravi Jain	Director (DIN No. 00107608)	12.48 Cr.	as per last available NF 589 dated 02.12.2019
Sri. Atul Jain	Director (DIN No. 00090709)	9.65 Cr	as per last available NF 589 dated 02.12.2019
Smt. Hemlath Jain	Director (DIN No. 01674937)	9.70 Cr	as per last available NF 589 dated 02.12.2019
Late Sri. Prem Chand Jain	Guarantor	Died on 12.08.2023	

How fraud came to light or Modus operandi-

That as per the agreed terms and conditions of sanction memorandum dated 21.03.2020, Developer Firm M/s Ratan Infratech was permitted to construct 30 flats over mortgaged property after demolition of old constructions subject to condition that the residential

complex having 30 flats at 1/184 & 1/185, Professors Colony shall be combined collateral security for M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd. All the sale proceeds of the flats have to routed through ESCROW a/c maintained with Bank and permission/NOC for transfer of individual flats shall be given on deposit of total sale proceeds in ESCROW a/c No: 2376214000105. Amount credited so shall be immediately adjusted in the accounts of M/s Ratan Prakashsan Mandir and M/s Vikas Books Ltd to reduce limits of both accounts in proportion of exposure i.e 81.82% in M/s Ratan Praksahan Mandir and 18.18 % in M/s Vikas Books Ltd. Developer Firm M/s Ratan Infratech, Through its Partner Late Mr. Prem Chand Jain has given an irrevocable undertaking to deposit all the sale proceeds in the Bank's ESCROW a/c and have authorized the Bank to recover the due amount from ESCROW a/c. As per the agreed terms and conditions of sanction memorandum it was further agreed that builder/Developer Firm M/s Ratan Infratech would indicate in their pamphlets/brochures that land of project is mortgaged to Canara Bank, SME, Agra and Developer Firm would ask purchasers to obtain No Objection Certificate (NOC)/ permission of the mortgagee Bank for sale of flats/property mortgaged with the Bank in case they avail any credit facility from any other Bank. Accordingly Developer Firm M/s Ratan Infratech has obtained NOC for Flat No: 402, Flat No: 403 and Flat No: 203 by depositing sale consideration in aforesaid ESCROW a/c.

That prior to filing of OA before Hon'ble Debts Recovery Tribunal (DRT) the applicant Bank obtained latest search report of the collateral security from its panel advocate Shri Rakesh Kulshrestha, Advocate, who gave his search report on 04.02.2022 from which it is found that the Developer Firm M/s Ratan Infratech through its partner Mr. Ravi Jain and others and mortgagors of property/land Late Mr. Prem Chand Jain, Mr. Ravi Jain, Mr. Atul Jain without obtaining NOC and permission from applicant Bank have transferred and sold following 18 flats by executing registered sale deeds on below mentioned dates without depositing sale consideration in ESCROW a/c No: 2376214000105 in violation of terms and conditions of sanction, loan agreement and undertaking given resulting in dilution of collateral security of Bank causing financial loss to the applicant Bank.

Following properties are sold by the accused without Bank's information/ NOC-

(i) Sale Deed dated 05.09.2018 registered on 07.09.2018 in Bahi No: 1, Zild No: 10400, Pages 61 to 96 at Sr. No: 3025 in the office of Sub Registrar (First), Agra for a sale consideration of Rs. 75,88,000/- (Rs. Seventy Five Lakhs and Eighty Eight Thousand only) in favour of Dr. Amit Agarwal, S/o Mr. Ashok Kumar Agarwal, R/o 1/193-5, Bihari Kunj, Professor's Colony, Delhi Gate, Agra-282002 regarding Flat No:

304, Third Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 267.21 Sq. Meters.

(ii) Sale Deed dated 13.09.2018 registered on 18.09.2018 in Bahi No: 1, Zild No: 10410, Pages 313 to 346 at Sr. No: 3178 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 94,77,000/- (Rs. Ninety Four Lakhs and Seventy Seven Thousand only)** in favour of Mr. Mohan Swaroop Jain, S/o Mr. Magan Chand Jain, R/o 69/A-1, Surya Nagar, Agra-282002 regarding Flat No: 204, Second Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 267.21 Sq. Meters.

(iii) Sale Deed 28.03.2019 registered on 29.03.2019 in Bahi No: 1, Zild No: 10568, Pages 127 to 162 at Sr. No: 1064 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 94,77,000/- (Rs. Ninety Four Lakhs and Seventy Seven Thousand only)** in favour of Mr. Sunil Kumar Jain, S/o Mr. Pukhraj Singh Jain, R/o 7, A.D.A Colony, Bagh Farjana, Civil Lines, Agra-282002 regarding Flat No: 205, Second Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 267.21 Sq. Meters.

(iv) Sale Deed 29.03.2019 registered on 29.03.2019 in Bahi No: 1, Zild No: 10568, Pages 163 to 198 at Sr. No: 1065 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 94,77,000/- (Rs. Ninety Four Lakhs and Seventy Seven Thousand only)** in favour of Mr. Ranjeet Singh Jain, S/o Mr. Rajendra Singh Jain, R/o 4, Church Road, Civil Lines, Agra-282002 regarding Flat No: 105, First Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 267.21 Sq. Meters.

(v) Sale Deed dated 17.06.2019 registered on 18.06.2019 in Bahi No: 1, Zild No: 10644, Pages 363 to 396 at Sr. No: 2132 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 94,39,000/- (Rs. Ninety Four Lakhs and Thirty Nine Thousand only)** in favour of Mrs. Ritika Bansal, W/o Mr. Vijay Kishor Bansal, R/o 36A, Old Vijay Nagar Colony, Belanganj, Agra-282003 regarding Flat No: 303, Third Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 268.98 Sq. Meters.

(vi) Sale Deed dated 28.08.2019 registered on 29.08.2019 in Bahi No: 1, Zild No: 10710, Pages 57 to 108 at Sr. No: 3025 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 95,53,500/- (Rs. Ninety Five Lakhs Fifty Three Thousand and Five Hundred only)** in favour of Mr. Prashant Jain S/o Mr. Naresh Jain, R/o 1/11, Sathitya Kunj, M.G.Road, Raja Mandi, Agra-282002 regarding Flat No: 301, Third Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 268.98 Sq. Meters.

(vii) Sale Deed dated 28.08.2019 registered on 29.08.2019 in Bahi No: 1, Zild No: 10710, Pages 109 to 158 at Sr. No: 3026 in the office

of Sub Registrar (First), Agra for a sale consideration of **Rs. 92,13,600/- (Rs. Ninety Two Lakhs Thirteen Thousand and Six Hundred only)** in favour of Mrs. Swati Jain, w/o Mr. Prashant Jain, R/o 1/11, Sathitya Kunj, M.G.Road, Raja Mandi, Agra-282002 regarding Flat No: 302, Third Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 259.34 Sq. Meters.

(viii) Sale Deed dated 05.10.2019 registered on 05.10.2019 in Bahi No: 1, Zild No: 10742, Pages 261 to 288 at Sr. No: 3471 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 75,88,000/- (Rs. Seventy Five Lakhs Eighty Eight Thousand only)** in favour of M/s Sparsh Malhotra Hospital, through its Proprietor Dr. Sachin Malhotra, 05, Khandari Quarter, Sparsh Malhotra Hospital, Agra-282002 regarding Flat No: 404, Fourth Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 267.21 Sq. Meters.

(ix) Sale Deed dated 05.10.2019 registered on 05.10.2019 in Bahi No: 1, Zild No: 10742, Pages 261 to 288 at Sr. No: 3471 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 75,88,000/- (Rs. Seventy Five Lakhs Eighty Eight Thousand only)** in favour of Mrs.(Dr) Sunita Malhotra w/o Dr. Sachin Malhotra, 05, Khandari Quarter, Sparsh Malhotra Hospital, Agra-282002 regarding Flat No: 405, Fourth Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, area 267.21 Sq. Meters.

(x) Sale Deed dated 18.10.2019 registered on 07.11.2019 in Bahi No: 1, Zild No: 10772, Pages 133 to 166 at Sr. No: 3860 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 75,88,000/- (Rs. Seventy Five Lakhs and Eighty Eight Thousand only)** in favour of Dr. Ayush Agarwal, S/o Shri Ashok Kumar Agarwal, R/o 1/193/5, Bagh Farjana, Civil Lines, Agra-282002 regarding Flat No: 305, Third Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, super built-up area 267.21 Sq. Meters.

(xi) Sale Deed dated 10.02.2020 registered on 10.02.2020 in Bahi No: 1, Zild No: 10854, Pages 377 to 430 at Sr. No: 458 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs. 2,40,32,000/- (Rs. Two Crore Forty Lakhs and Thirty Two Thousand only)** in favour of Shri Chand Sarin, S/o Late Shri Ram Narain Singh Sarin, 17/195, Chilli Int Road, Agra-282002 regarding Flat No: G-1, G-2 & G-3, First Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, super built-up area 797.36 Sq. Meters.

(xii) Sale Deed dated 26.11.2020 registered on 28.11.2020 in Bahi No: 1, Zild No: 11048, Pages 371 to 402 at Sr. No: 3320 in the office of Sub Registrar (First), Agra for a sale consideration of **Rs.**

81,35,000/- (Rs. Eighty One Lakhs and Thirty Five Thousand only) in favour of Smt. Rita Bansal, W/o Shri Sunil Bansal, R/o G-2, Friend's Apartment, Church Road, Civil Lines, Agra-282002 and Smt. Guncha Bansal W/o Shri Anuj Bansal R/o G-2, Friend's Apartment, Church Road, Civil Lines, Agra-282002 regarding Flat No: 501, Fifth Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, super built-up area 268.98 Sq. Meters.

(xiii) Sale Deed dated 26.11.2020 registered on 28.11.2020 in Bahi No: 1, Zild No: 11049, Pages 1 to 32 at Sr. No: 3321 in the office of Sub Registrar (First), Agra for a sale consideration of Rs. 75,88,000/- (Rs. Seventy Five Lakhs and Eighty Eight Thousand only) in favour of Smt. Rita Bansal, W/o Shri Sunil Bansal, R/o G-2, Friend's Apartment, Church Road, Civil Lines, Agra-282002 and Shri Anuj Bansal, S/o Shri Sunil Bansal, R/o G-2, Friend's Apartment, Church Road, Civil Lines, Agra-282002 regarding Flat No: 502, Fifth Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, super built-up area 259.34 Sq. Meters.

(xiv) Sale Deed dated 31.12.2020 registered on 12.01.2021 in Bahi No: 1, Zild No: 11087, Pages 209 to 242 at Sr. No: 136 in the office of Sub Registrar (First), Agra for a sale consideration of Rs. 92,35,000/- (Rs. Ninety Two Lakhs and Thirty Five Thousand only) in favour of Shri Dinesh Kumar Goyal, S/o Shri Om Prakash Goyal, R/o 26/2B, Balka Basti, Raja Mandi, Agra-282002 and Smt. Alka Goyal, W/o Dinesh Kumar Goyal, R/o 26/2B, Balka Basti, Raja Mandi, Agra-282002 regarding Flat No: 504, Fifth Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, super built-up area 267.21 Sq. Meters.

(xv) Sale Deed dated 22.01.2021 registered on 01.02.2021 in Bahi No: 1, Zild No: 11103, Pages 47 to 102 at Sr. No: 410 in the office of Sub Registrar (First), Agra for a sale consideration of Rs. 87,12,000/- (Rs. Eighty Seven Lakhs and Twelve Thousand only) in favour of Smt. Poonam Gupta, W/o Shri Deepak Gupta, R/o 10, Minakshi Puram, Manoharpur, Agra-282005, Shri Mahesh Chand Mohaniya, S/o Shri Kishan Gupta, R/o Azad Gali, Chhiti Khana, Agra-282003 and Shri Deepak Gupta, S/o Shri Mahesh Chand Mohaniya, R/o 10, Minakshi Puram, Manoharpur, Agra-282005 regarding Flat No: 202, Second Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate, Hariparvat, Agra, super built-up area 259.34 Sq. Meters.

(xvi) Sale Deed dated 03.02.2021 registered on 03.02.2021 in Bahi No: 1, Zild No: 11105, Pages 15 to 48 at Sr. No: 446 in the office of Sub Registrar (First), Agra for a sale consideration of Rs. 84,51,000/- (Rs. Eighty Four Lakhs and Fifty One Thousand only) in favour of Smt. Mansi Chandra W/o Shri Himanshu Chandra, R/o 73, Old Vijay Nagar Colony, Agra-282003 regarding Flat No: 503, Fifth Floor, HELIOS Apartments, Part of Property No: 1/184, 1/185, Delhi Gate,

		Hariparvat, Agra, super built-up area 259.34 Sq. Meters. That after getting knowledge of sale of aforesaid flats branch office of Bank has immediately given information to its higher authorities and gave public notice in two daily newspapers on 01.05.2022. Thereafter legal notices were given to Borrower Firm, its partners, mortgagors, guarantors, Developer Firm and flat purchasers calling upon them to deposit sale consideration in aforesaid ESCROW a/c but none of them have deposited the same. That in all the aforesaid sale deeds it has been specifically mentioned that flat sold is free from loan, sale, gift, encumbrances etc but even after public notice and receiving legal notices to the best of the knowledge of applicant Bank none of the flat purchasers have filed criminal complaint against Developer Firm and its partners instead they are giving notices, filing writs and special appeals (SA) against Bank as they are either known family friends or relatives of mortgagors and from their conduct it appears that they are in connivance, collusion and conspiracy with mortgagors/partners of Developer Firm. That applicant Bank has also appointed Mr. Sanjay Agarwal, CA for stock audit to verify primary security but partners of Borrower Firm did not allow them to visit premises and verify stock and other hypothecated goods and from their conduct applicant Bank apprehends that they have embezzled stock, hypothecated goods and have provided manipulated list of debtors. Out of the mortgaged property i.e., Helios Apartment, Bank has given NOC to flat purchasers/ owners of Flat No. 203, 402 and 403. On the basis of aforesaid averments it is clear that aforesaid persons have committed offence of fraud, forgery, cheating, criminal breach of trust etc with the Bank and have caused wrongful gain to themselves and wrongful loss to Bank. In view of the above, the Competent Authority of the Bank, permitted to declare both the accounts as Fraud and lodging of complaint with CBI. Accordingly matter was reported as Fraud to RBI on 10.04.2023 vide FMR No. CANA2302-0002. That after taking necessary departmental approvals this complaint is being filed with you without any unnecessary delay.
7	Names of the accused person(s)	1. M/s Ratan Prakashan Mandir, Proprietorship/ Borrower firm having its Reg office at Ratan Mall, 3rd Floor, 1/185C, Professor's Colony, Delhi Gate, Agra-282002. 2. M/s Vikas Books Ltd. (CIN- U74899DL1995PLC064412), Borrower Company having its Regd. Office at No. 306, II Floor, EMCA Chambers, 51, Dariya Ganj, New Delhi- 110002.

		3. Late Shri Prem Chand Jain, Proprietor M/s Ratan Prakashan Mandir and also as Guarantor of M/s Vikas Books Ltd. PAN: ABIPJ8282E, Mobile: 8392812345 Residing at No. 1/184, Professor's Colony, Delhi Gate, Agra-282002. Late Shri Prem Chand Jain is also a partner in M/s Ratan Infratech (Developer Firm) situated at 5/169/1, Lata Kunj, Agra-Mathura Road, Agra-282002. 4. Mrs. Hemlata Jain, Director of M/s Vikas Books Ltd. & Guarantor for M/s Ratan Prakashan Mandir and Vikas Books Ltd. PAN- ADNPJ7083N W/o Mr. Prem Chand Jain, R/o 1/184, Professor's Colony, Delhi Gate, Agra-282002. 5. Mr. Ravi Jain, Director of M/s Vikas Books Ltd. and Mortgagor & Guarantor for M/s Ratan Prakashan Mandir and Vikas Books Ltd. PAN- ADQPJ4441D S/o Late Mr. Prem Chand Jain, R/o 1/184, Professor's Colony, Delhi Gate, Agra-282002. Mr. Ravi Jain also as partner of M/s Ratan Infratech (Developer Firm) situated at 5/169/1, Lata Kunj, Agra-Mathura Road, Agra-282002. 6. Mr. Atul Jain, Director of M/s Vikas Books Ltd. and Mortgagor & Guarantor for M/s Ratan Prakashan Mandir and Vikas Books Ltd. PAN- ADQPJ4441D S/o Late Mr. Prem Chand Jain, R/o 1/184, Professor's Colony, Delhi Gate, Agra-282002. Mr. Atul Jain is also a partner in M/s Ratan Infratech (Developer Firm) situated at 5/169/1, Lata Kunj, Agra-Mathura Road, Agra-282002. 7. <u>Unknown public servants & unknown others.</u>
8	Role of accused person(s) including the role of public	The collateral property mortgaged to the exposure of M/s Ratan Prakashan Mandir & M/s Vikas Books Ltd., belonged to Late Mr. Prem Chand Jain, Mr. Ravi Jain and Mr. Atul Jain in 3 different deeds. All the three formed a partnership firm named M/s Ratan

	servant(s)	Infratech and started constructing residential flats complex named HELIOS. The customer had demolished the mortgaged building without the NOC from the Bank in the year 2017. Subsequently, Lucknow Circle Office vide sanction dated 23.01.2017, had permitted for the construction of Residential Flats on the mortgaged property from the borrower's own sources/funds and sell the same with a condition that all the sale proceeds to be credited in the Escrow A/c of M/s Ratan InfraTech till it reaches Rs.22.00 Crores, so that the cash collateral can replace the mortgaged collateral security of both the accounts viz. M/s Ratan Prakashan Mandir and M/s Vikas Books Ltd. However, the IO has pointed out that out of the 21 Flats that are sold, the sale proceeds for only the 3 Flats were deposited amounting Rs.2.68 Crs. The borrower has intentionally defrauded the Bank by not depositing the sale proceeds of all the flats sold and has not complied with the Bank's sanction terms and conditions causing wrongful loss to the Bank. Thus the accused persons Late Mr. Prem Chand Jain, Mrs. Hemlata Jain, Mr. Ravi Jain, Mr. Atul Jain as partners of Borrower Firm/Developer Firm, and also as guarantors & mortgagors in the loan account have sold the collateral security (mortgaged flats) in violation of terms of sanction and undertaking given by Developer Firm and have also embezzled hypothecated goods and stock which was prime security of Bank after criminal conspiracy and committed cheating, fraud and criminal breach of trust by a business man upon the Bank.
9	Grave irregularities committed by public servant(s)	The internal investigation conducted in the account has revealed only certain procedural lapses on the part of Bank staff and not revealed any direct involvement in commission of fraud.
10	Role of common conspirator	Not known except the accused persons
11	The names and addresses of prosecution witnesses	(i) Branch Manager, SME Branch, Sanjay Place, Agra. (ii) Mr. Sudhir Singh, Manager (Credit) of Bank who inspected mortgaged property and submitted report to Bank. (iii) Mr. Sanjay Agarwal, Stock auditor of Bank. (iv) Mr. Rakesh Kulshrestha, Panel Advocate, who gave search report regarding sale of mortgaged flats.
12	Action taken by the Bank against Public Servant (s)	The internal investigation conducted in the account has revealed only certain procedural lapses on the part of Bank staff and not revealed any direct involvement in commission of fraud. The departmental action is under process.

	including departmental proceedings initiated. If so, details thereof	
13	Whether investigation conducted by the Bank. If yes, details of the major findings	Yes, investigation conducted in the account of M/s Ratan Prakashan Mandir and report is enclosed. Yes, investigation conducted in the account of M/s Vikas Books Ltd and report is enclosed.
14	Whether forensic audit was conducted. If yes, findings of the forensic audit report. Copy of the report to be submitted	No
15	Availability of original document(s)	All the original loan documents and title deeds of mortgaged properties are available with Canara Bank, SME Branch, Sanjay Place, Agra.
16	Whether accused persons were involved in any other fraud in the Bank on an earlier occasion	Not to our knowledge
17	Whether the fraud has Interstate, International, ramification. If yes, give the details	Not known
18	Role of CA, Statutory Auditors, Stock Auditors, Empanelled Valuers etc., if any are mentioned	Not Known.

REF: AGCO/R&L/COMPLAINT/RATAN PRAKASHAN/2024-25

DATE: 27.08.2024

19	Whether registration is authorized by CVO of the Bank	NA. Since the amount involved in the fraud is below 50 Crores, authorization from CVO is not required as per Central Vigilance Commission (CVC) Manual (Updated 2021).
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In view of the above facts, we request you to register a regular case/ FIR, on behalf of the **complainant Bank** and investigate into the matter and initiate appropriate criminal proceedings against the accused persons in the commission of fraudulent acts mentioned above in accordance with law. A copy of the FIR may please be furnished to us.

Thanking you,

Yours faithfully,



Deputy General Manager


Enclosed:



1. Certified copies of sale deeds & other documents.
2. Investigation Reports